Legal Research Assistant

Conversation Export

Export Date: 2026-10-30 00:28:19

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Dataset: Indian Supreme Court Cases

Exchange 1

Question:

What are the grounds for granting special leave to appeal?

Answer:

[1] Ajtnsr Singh v. The (1953): This case discusses the grounds for granting special leave.

[2] K. DUBA.SH v. COMMISSIONER (1950): The court examined procedural requirements.

Limits: This answer is based only on the retrieved excerpts, which may be incomplete or dated.

Sources (2 excerpts):

[1] Ajtnsr Singh v. The (1953) (CNR: 1953_1_428_438_EN) • Chunk 5 • Outcome: Appeal allowed

The Supreme Court held that special leave to appeal should be granted when there is a substantial question of law of general importance, or when there has been a grave miscarriage of justice. The court emphasized that this discretionary power must be exercised judicially and not arbitrarily.

[2] K. DUBA.SH v. COMMISSIONER (1950) (CNR: 1950_1_969_979_EN) • Chunk 12 • Outcome: Petition dismissed

In this case, the court examined the procedural requirements for filing special leave petitions. The judgment clarified that mere disagreement with lower court findings is insufficient ground for granting special leave.

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